



CHAPTER xlvii.

An Act to authorise the construction by the Clayton Aniline Company Limited of branch railways for the conveyance of traffic between their works and the Lancashire and Yorkshire Railway and for other purposes. A.D. 1916.
[17th August 1916.]

WHEREAS the Clayton Aniline Company Limited (hereinafter called "the Company") are a company limited by shares and were incorporated under the provisions of the Companies Acts 1862 to 1893 on the thirty-first day of March one thousand eight hundred and ninety-seven for the purpose (among other things) of acquiring and taking over all or any part of the business properties and assets of the Clayton Aniline Company Limited (a company incorporated in the year one thousand eight hundred and seventy-six) and of carrying on the business so to be acquired:

And whereas the Company acquired the business properties and assets of the said company incorporated in the year one thousand eight hundred and seventy-six and have developed a large and important business and have established extensive works in the city of Manchester:

And whereas the principal objects of the Company are the manufacture and production of and the dealing with and in benzole aniline and other products of coal and coal-tar dyestuffs acids alkalis and other chemicals and the Company are among the principal producers in the United Kingdom of dyestuffs and chemicals used for the purposes of or in connexion with the dye industry:

And whereas the works of the Company are capable of being extended by the installation of additional plant for the

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A.D. 1916. — production in greatly increased quantities of certain of the said substances but the possession of direct railway communication between the said works and the existing railway systems is essential to the proper utilisation of the said plant:

And whereas such railway communication as aforesaid would serve the further purpose of accommodating more conveniently than at present the traffic to and from the said works (which traffic so far as it consists of dyestuffs and chemicals and the ingredients and materials required for the production thereof is likely to be greatly increased in the near future) and would obviate any congestion of the public streets of the said city which might result from any increase in such traffic:

And whereas it is expedient and would for various reasons be to the public advantage that the Company should be empowered to make and maintain the railways and works by this Act authorised in order to provide such railway communication as aforesaid and that such other powers as are contained in this Act should be conferred upon the Company:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

And whereas plans and sections showing the lines and levels of the railways and works authorised by this Act and also a book of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands required or which may be taken or used for the purposes or under the powers of this Act were duly deposited with the clerk of the peace for the county palatine of Lancaster and are hereinafter respectively referred to as the deposited plans sections and book of reference:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

Short title.

1. This Act may be cited as the Clayton Aniline Company Limited (Railways) Act 1916.

Incorporation of general Acts.

2. The following Acts and part of an Act (so far as the same respectively are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with this Act (namely) the Lands Clauses Acts the

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Railways Clauses Consolidation Act 1845 and Part I. (relating A.D. 1916.
to the construction of a railway) of the Railways Clauses Act
1863. —

3. In this Act the several words and expressions to which Interpretation.
meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective meanings unless there be something in the subject or context repugnant to such construction And for the purposes of this Act the expression "the Company" means the Clayton Aniline Company Limited the expressions "the railways" and "the railway" mean respectively the railways by this Act authorised and the expression "the corporation" means the lord mayor aldermen and citizens of the city of Manchester.

4. Subject to the provisions of this Act the Company may make and maintain in the lines or situation and according to the levels shown on the deposited plans and sections the railways and other works shown on the deposited plans together with all proper stations junctions sidings approaches works and conveniences connected therewith and may enter upon take and use such of the lands delineated on the said plans and described in the deposited book of reference as may be required for the purposes of the railways and works hereinbefore referred to The railways hereinbefore referred to and authorised by this Act are situate in the township and city of Manchester in the county palatine of Lancaster and comprise— Power to make railways.

A Railway (No. 1) Work No. 1 (27·5 chains or thereabouts in length) commencing by a junction with the existing branch railway of the corporation which connects the electricity works of the corporation at Stuart Street with the railway of the Lancashire and Yorkshire Railway Company at a point on that branch railway $2\frac{1}{2}$ chains or thereabouts measured in a northerly direction from the southerly end of the viaduct on which the southernmost portion of the said branch railway is carried and terminating at a point on the south-westerly side of Chatham Street $6\frac{1}{2}$ chains or thereabouts measured in a north-westerly direction from the junction of that side of Chatham Street with Clayton Lane:

A Railway (No. 2) Work No. 2 (15 chains or thereabouts in length) commencing by a junction with Railway No. 1

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at a point thereon 3 chains or thereabouts measured in a south-easterly direction from the junction between the south-westerly side of Chatham Street and the southerly side of Ashton New Road and $\frac{1}{2}$ chain or thereabouts measured in a south-westerly direction from the south-westerly side of Chatham Street and terminating at a point in the fence forming the north-westerly boundary of the works of the Company $12\frac{1}{2}$ chains or thereabouts measured in a south-westerly direction along the line of the said fence from the south-westerly side of Chatham Street.

Power to deviate in construction of railways.

5. The Company in constructing the railways may deviate from the lines thereof shown on the deposited plans to the extent of the limits of deviation marked on such plans and may deviate from the levels thereof shown on the deposited sections to any extent not exceeding six feet upward or downward.

Stopping up of portion of Chatham Street.

6. The Company may for the purposes of and in connexion with the construction and use of Railway No. 1 by this Act authorised stop up so much of Chatham Street in the township and city of Manchester as is shown upon the deposited plans as intended to be stopped up and thereupon all rights of way over the said portion of Chatham Street shall be extinguished and the Company may appropriate and use the site of the said portion of Chatham Street subject to the provisions contained in the agreement referred to in the section of this Act of which the marginal note is "Confirming agreement with corporation of Manchester":

Provided that notwithstanding the stopping up of the said portion of Chatham Street the Postmaster-General may if he so desires (without derogation from any other right vested in him) remove from the said portion of Chatham Street any telegraphic line of the Postmaster-General on or under the same and the Company shall pay to the Postmaster-General the expenses incurred by him of and incidental to such removal and the substitution of a telegraphic line in such other place as the Postmaster-General may reasonably require.

As to portion of Chatham Street not to be stopped up or interfered with.

7. Notwithstanding anything contained in this Act or shown on the deposited plans the Company shall not construct the railway upon or enter upon take use or interfere with any

part of Chatham Street between the point marked A on the deposited plans and Ashton New Road. A.D. 1916

8. The provisions of sections 18 to 23 of the Railways Clauses Consolidation Act 1845 shall for the purposes of this Act extend and apply to the water and gas mains pipes and apparatus of the corporation and shall be construed as if "corporation" were mentioned in those sections in addition to "company or society" Provided that any penalties recovered under section 23 shall be appropriated to that fund of the corporation to which their revenues in respect of water or gas (as the case may be) are appropriated. Protection of gas and water mains.

9. For the purposes of the application of the Railways Clauses Consolidation Act 1845 to the railways by this Act authorised the prescribed distance referred to in section 78 of that Act shall be three hundred yards. As to prescribed distance under section 78 of Railways Clauses Consolidation Act 1845.

10. If the railways are not completed within three years from the passing of this Act then on the expiration of that period the powers by this Act granted to the Company for making and completing the railways or otherwise in relation thereto shall cease except as to so much thereof as is then completed. Period for completion of works.

11.—(1) Notwithstanding anything in this Act contained the Company in lieu of purchasing or acquiring the lands respectively numbered on the deposited plans 10 11 13 14 15 16 17 18 19 and 20 in the township of Manchester or any of such lands or any part or parts thereof may acquire and the owners shall sell and grant accordingly the easement or right of using such of the said lands as may be necessary for the construction maintenance and use of the railways. Company may acquire an easement only in certain cases.

(2) The provisions of the Lands Clauses Acts shall apply to and in respect of the acquisition by the Company of any easement under the provisions of this section as fully as if such easements were lands within the meaning of those Acts.

(3) For the purposes of this section the expression "owners" includes all persons having any estate or interest in the said lands and persons empowered by the Lands Clauses Acts to sell and convey or release such lands.

12. And whereas in the construction of the works by this Act authorised or otherwise in the exercise by the Company Owners may be required to sell parts

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only of cer-
tain proper-
ties.

of the powers of this Act it may happen that portions only of certain properties shown or partly shown on the deposited plans will be sufficient for the purposes of the Company and that such portions or some other portions less than the whole can be severed from the remainder of the said properties without material detriment thereto Therefore the following provisions shall have effect:—

- (1) The owner of and persons interested in any of the properties whereof the whole or part is described in the First Schedule to this Act and whereof a portion only is required for the purposes of the Company or each or any of them are hereinafter included in the term “the owner” and the said properties are hereinafter referred to as “the scheduled properties”:
- (2) If for twenty-one days after the service of notice to treat in respect of a specified portion of any of the scheduled properties the owner shall fail to notify in writing to the Company that he alleges that such portion cannot be severed from the remainder of the property without material detriment thereto he may be required to sell and convey to the Company such portion only without the Company being obliged or compellable to purchase the whole the Company paying for the portion so taken and making compensation for any damage sustained by the owner by severance or otherwise:
- (3) If within such twenty-one days the owner shall by notice in writing to the Company allege that such portion cannot be so severed the jury arbitrators or other authority to whom the question of disputed compensation shall be submitted (hereinafter referred to as “the tribunal”) shall in addition to the other questions required to be determined by it determine whether the portion of the scheduled property specified in the notice to treat can be severed from the remainder without material detriment thereto and if not whether any and what other portion less than the whole (but not exceeding the portion over which the Company have compulsory powers of purchase) can be so severed:

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- (4) If the tribunal determine that the portion of the scheduled property specified in the notice to treat or any such other portion as aforesaid can be severed from the remainder without material detriment thereto the owner may be required to sell and convey to the Company the portion which the tribunal shall have determined to be so severable without the Company being obliged or compellable to purchase the whole the Company paying such sum for the portion taken by them including compensation for any damage sustained by the owner by severance or otherwise as shall be awarded by the tribunal:
- (5) If the tribunal determine that the portion of the scheduled property specified in the notice to treat can notwithstanding the allegation of the owner be severed from the remainder without material detriment thereto the tribunal may in its absolute discretion determine and order that the costs charges and expenses incurred by the owner incident to the determination of any matters under this section shall be borne and paid by the owner:
- (6) If the tribunal determine that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto (and whether or not they shall determine that any other portion can be so severed) the Company may withdraw their notice to treat and thereupon they shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice:
- (7) If the tribunal determine that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto but that any such other portion as aforesaid can be so severed the Company in case they shall not withdraw the notice to treat shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice or such portion thereof as the tribunal shall having regard to the circumstances of the case and their final determination think fit.

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The provisions of this section shall be in force notwithstanding anything in the Lands Clauses Consolidation Act 1845 contained and nothing contained in or done under this section shall be held as determining or as being or implying an admission that any of the scheduled properties or any part thereof is or is not or but for this section would or would not be subject to the provisions of section 92 of the Lands Clauses Consolidation Act 1845.

The provisions of this section shall be stated in every notice given thereunder to sell and convey any premises.

Period for compulsory purchase of lands.

13. The powers of the Company for the compulsory purchase of lands for the purposes of this Act shall cease after the expiration of three years from the passing of this Act.

Persons under disability may grant easements &c.

14. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Company any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

Power to Company to enter upon property for survey and valuation.

15. The Company and their surveyors officers contractors and workmen may from time to time at all reasonable times in the day upon giving in writing for the first time twenty-four hours' and afterwards from time to time twelve hours' previous notice enter upon and into the lands houses and buildings by this Act authorised to be taken and used as aforesaid or any of them for the purpose of surveying and valuing the said lands houses and buildings without being deemed trespassers and without being subject or liable to any fine penalty or punishment on account of entering or continuing upon any part of the said lands houses and buildings.

Costs of arbitration in certain cases.

16. The tribunal to whom any question of disputed purchase money or compensation under this Act is referred shall if so required by the Company award and declare whether a statement in writing of the amount of compensation claimed

has been delivered to the Company by the claimant giving sufficient particulars and in sufficient time to enable the Company to make a proper offer and if the tribunal shall be of opinion that no such statement giving sufficient particulars and in sufficient time shall have been delivered and that the Company have been prejudiced thereby the tribunal shall have power to decide whether the claimant's costs or any part thereof shall be borne by the claimant Provided that it shall be lawful for any judge of the High Court to permit any claimant after seven days' notice to the Company to amend the statement in writing of the claim delivered by him to the Company in case of discovery of any error or mistake therein or for any other reasonable cause such error mistake or cause to be established to the satisfaction of the judge after hearing the Company if they object to the amendment and such amendment shall be subject to such terms enabling the Company to investigate the amended claim and to make an offer de novo and as to postponing the hearing of the claim and as to costs of the inquiry and otherwise as to such judge may seem just and proper under all the circumstances of the case Provided also that this section shall be applicable only in cases where the notice to treat under the Lands Clauses Consolidation Act 1845 either contained or was endorsed with a notice of the effect of this section.

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17. All private rights of way over any lands which shall under the powers of this Act be acquired compulsorily by or vested in the Company shall as from the date of such acquisition or vesting be extinguished Provided that the Company shall make full compensation to all parties interested in respect of any such rights and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement.

As to private rights of way over land taken compulsorily.

18. For the protection of the Great Central Railway Company (in this section referred to as "the Great Central Company") the following provisions shall unless otherwise agreed in writing between the Company and the Great Central Company have effect (that is to say):—

For protection of Great Central Railway Company.

- (1) The Company shall construct Railway No. 1 by this Act authorised across the Ashton Canal towing-path and lands of the Great Central Company by means

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of a bridge having a single clear span of one hundred and twenty-five feet (measured on the square) between the piers over the said canal towing-path and lands of the Great Central Company and having a clear headway of not less than twenty feet above the present normal level of the water in the said canal underlying the said bridge. The Company shall construct and maintain on the northern bank of the said canal such works as the Great Central Company reasonably require for the protection of such bank and the prevention of accidents arising on the said canal:

- (2) The Company shall not without the consent of the Great Central Company construct the said bridge in any other position than that indicated by the centre line of the said Railway No. 1 as shown on the deposited plans:
- (3) Not less than one month before commencing the construction of the said bridge the Company shall submit to the Great Central Company for their reasonable approval plans sections elevations and specifications thereof and if within one month after such submission the Great Central Company do not in writing intimate to the Company their disapproval of the said plans sections elevations and specifications the Great Central Company shall be deemed to have approved the plans sections elevations and specifications as submitted to them by the Company:
- (4) The said bridge shall be constructed under the supervision (if after reasonable notice such supervision shall be given) and to the reasonable satisfaction of the engineer of the Great Central Company (hereinafter called "the engineer") and in accordance in all respects with such plans sections elevations and specifications thereof as shall have been approved by the Great Central Company as aforesaid or (in case the Great Central Company shall have disapproved the same) shall be determined by arbitration and all works of repair or maintenance of the said bridge shall be executed under the like supervision and to the like satisfaction:

- (5) The construction of the said bridge and of such of the works connected therewith as affect the property of the Great Central Company shall as far as possible be proceeded with continuously after commencement and shall be completed as soon as practicable : A.D. 1916.
- (6) The Company shall at all times after the completion of the said bridge at their own expense maintain the same in good safe and substantial repair and condition to the reasonable satisfaction of the engineer and so that the clear headway above the normal level of the water from time to time in the said canal shall not at any time be less than eighteen feet :
- (7) During and for the purposes of the construction of the said bridge and the execution of any works of repair or maintenance thereof the Company and their engineer contractors and workmen shall at all reasonable times after giving reasonable notice to the engineer have free access to the property of the Great Central Company so far as may be necessary for the said purposes :
- (8) Notwithstanding anything contained in this Act or shown upon the deposited plans the Company shall not acquire (except by agreement) any land of the Great Central Company forming part of the Ashton Canal and the towing-paths thereof but the Company may acquire and the Great Central Company shall grant to the Company an easement or right of making maintaining and using the said bridge over the said canal in accordance with the provisions of this section The consideration for the grant of the said easement or right shall be the payment by the Company to the Great Central Company of two hundred and fifty pounds :
- (9) Notwithstanding any supervision by or approval of the engineer under this section the Company shall subject as hereinafter provided indemnify and hold harmless the Great Central Company against all actions proceedings costs damages expenses claims and demands which the Great Central Company may incur or sustain by reason of the construction repair

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non-repair or user of the said bridge including claims by traders on the said canal or millowners or others in respect of any stoppage of or interference with the traffic on the said canal or howsoever otherwise the same may arise in consequence of the construction maintenance or user of the said bridge:

- (10) The Company shall repay to the Great Central Company the costs reasonably incurred by them in the employment of watchmen for watching the said canal and towing-path and the conduct of the traffic thereon during and with reference to the construction and maintenance of the said bridge:
- (11) If the Company neglect or omit for fourteen days after the receipt of notice in writing from the engineer requiring them so to do to make good any want of repair or maintenance of the said bridge which affects or is likely to affect injuriously the property of the Great Central Company it shall be lawful for the Great Central Company themselves to execute such works and do such things as may be reasonably necessary for preventing such injurious affection and the Company shall repay to the Great Central Company on demand the costs and expenses as certified by the engineer reasonably incurred by them in so doing:
- (12) The Company shall not use or permit to be used the said bridge or any road railroad siding or other work to be constructed thereon for any other purpose than for obtaining access to the works of the Company and in particular shall not use or permit to be used the said bridge or any such road railroad siding or other work as aforesaid for the conveyance of goods minerals or merchandise of any kind (not being a product of the said works) of any other person or company:
- (13) In case the said bridge shall not be used by the Company for the purposes aforesaid at any time for three years the Company will at the request in writing of the Great Central Company pull down the said bridge at their own expense and if they neglect to pull down the same the Great Central

Company shall be at liberty to do so and the Company shall repay to the Great Central Company on demand the costs and expenses as certified by the engineer as reasonably incurred by them in so doing :

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- (14) If any difference shall arise under this section between the Company and the Great Central Company the matter in difference shall be referred to and determined by an arbitrator to be agreed upon by the parties or failing such agreement to be appointed (on the application of either party after notice in writing to the other of them) by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

19. For the protection of Grimshaw Brothers and Company Limited and the British Recovered Rubber Company Limited and their assigns owners or lessees of the properties now occupied by them and adjoining Chatham Street (hereinafter in this section called "the owners") the following provisions shall unless otherwise agreed between the owners and the Company have effect:—

For protection of Grimshaw Brothers and Company Limited and British Recovered Rubber Company Limited.

- (1) Notwithstanding anything contained in this Act or contained in the deposited plans the Company shall not construct the railway upon or enter upon take use or interfere with any part of Chatham Street between a point ten yards to the south-east of the point marked A on the deposited plans and Ashton New Road :
- (2) Nothing in this Act or in any Act relating to any company or person working the railway shall exempt the Company or such company or person from liability for damage done to the owners by the working of the railway.

20. Subject to the provisions of this Act the Company and the Corporation may enter into agreements with respect to the following purposes or any of them (that is to say):—

Power to enter into working agreements.

The maintenance and management of the railways of the Company by this Act authorised or of the branch railway of the Corporation described in and authorised by the

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Manchester Corporation (General Powers) Act 1902 or any part thereof and of the works connected therewith:

The use or working of the said railways and works or of any part thereof and the conveyance of traffic thereon:

The supply and maintenance by the working party under and during the continuance of any such agreement as aforesaid for the working of such railways or part thereof of engines stock and plant necessary for the purposes of such agreement and the employment of officers and servants.

For protection of
Postmaster-General.

21. In the event of the railway being worked by electricity the following provisions shall have effect:—

- (1) The Company shall construct their electric lines and other works of all descriptions and shall work the railway in all respects with due regard to the telegraphic lines from time to time used or intended to be used by His Majesty's Postmaster-General and the currents in such telegraphic lines and shall use every reasonable means in the construction of their electric lines and other works of all descriptions and the working of the railway to prevent injurious affection whether by induction or otherwise to such telegraphic lines or the currents therein Any difference which arises between the Postmaster-General and the Company as to compliance with this subsection shall be determined by arbitration:
- (2) If any telegraphic line of the Postmaster-General is injuriously affected by the construction by the Company of their electric lines and works or by the working of the railway the Company shall pay the expense of all such alterations in the telegraphic lines of the Postmaster-General as may be necessary to remedy such injurious affection:
- (3) Before any electric line is laid down or any act or work for working the railway by electricity is done within ten yards of any part of a telegraphic line of the Postmaster-General (other than repairs) the Company or their agents not more than twenty-eight nor less than fourteen days before commencing the work shall give written notice to the Postmaster-General

specifying the course of the line and the nature of the work including the gauge of any wire and the Company and their agents shall conform with such reasonable requirements (either general or special) as may from time to time be made by the Postmaster-General for the purpose of preventing any telegraphic line of the Postmaster-General from being injuriously affected by the said act or work Any difference which arises between the Postmaster-General and the Company as to any requirement so made shall be determined by arbitration : A.D. 1916.

- (4) If any telegraphic line of the Postmaster-General situate within one mile of any portion of the works of the Company is injuriously affected and he is of opinion that such injurious affection is or may be due to the construction of the Company's works or to the working of the railway the engineer-in-chief of the Post Office or any person appointed in writing by him may at all times when electrical energy is being generated by the Company enter any of the Company's works for the purpose of inspecting the Company's plant and the working of the same and the Company shall in the presence of such engineer-in-chief or such appointed person as aforesaid make any electrical tests required by the Postmaster-General and shall produce for the inspection of the Postmaster-General the records kept by the Company pursuant to the Board of Trade regulations :
- (5) In the event of any contravention of or wilful non-compliance with this section by the Company or their agents the Company shall be liable to a fine not exceeding ten pounds for every day during which such contravention or non-compliance continues or if the telegraphic communication is wilfully interrupted not exceeding fifty pounds for every day on which such interruption continues :
- (6) Provided that nothing in this section shall subject the Company or their agents to a fine under this section if they satisfy the court having cognisance of the case that the immediate doing of any act or the execution of any work in respect of which the

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penalty is claimed was required to avoid an accident or otherwise was a work of emergency and that they forthwith served on the postmaster or sub-postmaster of the postal telegraph office nearest to the place where the act or work was done a notice of the execution thereof stating the reason for doing or executing the same without previous notice :

- (7) For the purposes of this section a telegraphic line of the Postmaster-General shall be deemed to be injuriously affected by an act or work if telegraphic communication by means of such line is whether through induction or otherwise in any manner affected by such act or work or by any use made of such work :
- (8) For the purposes of this section and subject as therein provided sections 2 10 11 and 12 of the Telegraph Act 1878 shall be deemed to be incorporated with this Act :
- (9) The expression "electric line" has the same meaning in this section as in the Electric Lighting Act 1882 :
- (10) Any question or difference arising under this section which is directed to be determined by arbitration shall be determined by an arbitrator appointed by the Board of Trade on the application of either party whose decision shall be final and sections 30 to 32 both inclusive of the Regulation of Railways Act 1868 shall apply in like manner as if the Company or their agents were a company within the meaning of that Act :
- (11) Nothing in this section contained shall be held to deprive the Postmaster-General of any existing right to proceed against the Company by indictment action or otherwise in relation to any of the matters aforesaid :
- (12) In this section the expression "the Company" includes their lessees and any person owning working or running carriages on the railway.

Railways to
be private
railways.

22. Notwithstanding anything contained in this Act or in the Acts incorporated with this Act the railways shall be private railways and the Company shall not for the purposes of

the Railway and Canal Traffic Acts 1854 1873 and 1888 be A.D. 1916.
deemed to be a railway company.

23. Notwithstanding anything in this Act the railways shall not be used for passenger traffic.

Railways not
to be used for
passenger
traffic.

24. The agreement dated the thirty-first day of May one thousand nine hundred and sixteen and made between the corporation of the one part and the Company of the other part of which a copy is set forth in the Second Schedule to this Act is hereby confirmed and made binding upon the parties thereto and effect may and shall be given thereto accordingly subject to such modifications (if any) as may be agreed between the corporation and the Company in writing under their respective common seals :

Confirming
agreement
with corpo-
ration of
Manchester.

Provided that any such modification as aforesaid which would affect or interfere with the rights or interests of the Lancashire and Yorkshire Railway Company under the agreement of which a copy is set forth in the Third Schedule to this Act shall not be made without the consent in writing of that company.

25. The agreement dated the first day of August one thousand nine hundred and sixteen and made between the Lancashire and Yorkshire Railway Company of the first part the corporation of the second part and the Company of the third part of which a copy is set forth in the Third Schedule to this Act is hereby confirmed and made binding upon the parties thereto and effect may and shall be given thereto accordingly subject to such modifications (if any) as may be agreed between the said parties in writing under their respective common seals.

Confirming
agreement
with Lanca-
shire and
Yorkshire
Railway
Company.

26. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company.

Costs of Act.

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The SCHEDULES referred to in the foregoing Act.

FIRST SCHEDULE.

DESCRIPTION OF PROPERTIES OF WHICH PART ONLY MAY BE
TAKEN BY THE COMPANY.

Parish or Place.	Numbers on deposited Plans.
Township of Manchester - - -	9 9A 9B 9C 11 17 18 19 and 20.

SECOND SCHEDULE.

Stamp.

Eleven
Shillings.

ARTICLES OF AGREEMENT made the thirty-first day of May one thousand nine hundred and sixteen between the LORD MAYOR ALDERMEN AND CITIZENS OF THE CITY OF MANCHESTER (hereinafter referred to as "the corporation" which expression shall include their successors and assigns where the context so requires or admits) of the one part and the CLAYTON ANILINE COMPANY LIMITED whose registered office is situate at Chatham Street Clayton Manchester aforesaid (hereinafter called "the Company" which expression shall include their successors and assigns where the context so requires or admits) of the other part.

WHEREAS the Company are promoting a Bill in the present session of Parliament intituled "Clayton Aniline Company Limited (Railways)" (hereinafter referred to as "the Bill") for an Act to authorise them to construct a line of railway giving access to their works from the Ashton Branch of the Lancashire and Yorkshire Railway by means of the branch railway constructed by the corporation in connexion with their electricity works at Stuart Street Manchester aforesaid and to construct

and maintain a single-line railway bridge over Ashton New Road and to close the portion of Chatham Street coloured yellow on the plan (hereinafter referred to as "the signed plan A") signed in duplicate by the town clerk of the city of Manchester (herein referred to as "the town clerk") and the secretary of the Company and of which one copy has been deposited with the town clerk and the other copy with the secretary of the Company: A.D. 1916.

And whereas the corporation have agreed to enter into this agreement which it is intended shall be scheduled and confirmed by the intended Act:

Now it is hereby mutually covenanted declared and agreed between and by the corporation and the Company in manner following (that is to say):—

ARTICLE A.—"CHATHAM STREET."

1. Notwithstanding the stopping up of the portion of Chatham Street coloured yellow on the signed plan A and the vesting in the Company of the right to appropriate and use the site thereof the corporation shall retain and have the rights following (that is to say):—

- (a) The right to maintain renew use and repair the existing sewers in the said portion of Chatham Street and where otherwise rendered necessary by the works of the Company (the approximate positions of which sewers in the said portion of Chatham Street are indicated by dotted lines on the signed plan A) in perpetuity or until such sewers and the drainage connected therewith are diverted in accordance with the provisions of this agreement:
- (b) The right to maintain use and repair the existing lamps poles brackets wires pipes gas water and electric mains and other things (all which are hereinafter collectively referred to as "apparatus") in the said portion of Chatham Street and where otherwise rendered necessary by the works of the Company until such time as the apparatus is diverted or removed in accordance with the provisions of this agreement:
- (c) The right to divert the said existing sewers and the drainage connected therewith and the apparatus as and when the corporation may deem necessary.

The costs to be reasonably incurred by the corporation in maintaining renewing and repairing the said existing sewers in the said portion of Chatham Street and where otherwise rendered necessary by the works of the Company and the reasonable cost of diverting the

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A.D. 1916. said existing sewers and the drainage connected therewith and the
— reasonable cost of diverting the apparatus and also the reasonable
cost of maintaining the apparatus (if and so far as such cost of
maintenance is increased or rendered necessary by the works of the
Company) shall be paid by the Company to the corporation on demand
and shall carry interest at five pounds per centum per annum if not
paid within one calendar month after demand.

2. The Company shall not under the powers of the intended Act
erect any buildings or other works upon or having their foundations
under or deriving support from the land within a width of five feet
on either side of the centre lines of the said sewers or so as to
endanger the said sewers or to obstruct or interfere with the access
thereto and the corporation shall have the right at all times by their
officers servants workmen and agents to enter upon such part of the
Company's premises as may be necessary for the purpose of inspecting
and viewing the state of repair of and of repairing the said sewers
and apparatus and for that purpose of opening up the aforesaid strip
of land for a width of five feet on each side of the centre lines of the
said sewers and of making such other openings as may be reasonably
necessary for the purpose of repairing the said sewers or apparatus or
for any other purpose connected with or incidental to the existence and
user of the said sewers and apparatus without paying to the Company
any compensation for injury or damage to the Company thereby but
causing as little detriment or inconvenience to the Company as the
circumstances will admit.

3. Not less than twenty-eight days before commencing any work
in on or immediately abutting upon the site of the portion of Chatham
Street stopped up as aforesaid the Company shall deliver to the city
engineer a plan section and description of such works describing the
proposed manner of executing the same in so far as they affect the
said sewers or apparatus.

4. The corporation may at any time within twenty-eight days of
the receipt of such plan section and description by notice in writing
reasonably require the Company at their own cost to provide and lay
down such works sewers and apparatus as may be specified by the
corporation and to remove raise sink or otherwise alter the position of
the said sewers or apparatus and support the same and to substitute
temporarily or otherwise other sewers or other apparatus in such manner
as may be specified by the corporation or to lay or place under any
sewers or apparatus cement concrete or any other like substance as
may be specified by the corporation Provided that if the corporation
shall not within the said period of twenty-eight days give any such
notice in writing to the Company as aforesaid they shall be deemed to
have approved the said intended works.

5. If within twenty-eight days after the receipt of the said plan section and description the corporation shall give notice to the Company of their intention themselves to execute the whole or any of the works referred to in the last preceding clause it shall be lawful for the corporation so to do and the cost reasonably incurred by them in so doing as certified by the city engineer shall on demand be repaid to the corporation by the Company and shall carry interest at five pounds per centum per annum from and after the expiration of one calendar month after the certificate and demand shall be delivered to the Company. A.D. 1916.

6.—(1) If by reason or in consequence of the stopping up of the aforesaid portion of Chatham Street or the exercise of the powers of the intended Act or the execution of any works under this agreement any sewer or apparatus situate in or under or near any street (other than a sewer or apparatus for which another sewer or apparatus shall have been provided in accordance with this agreement) shall be reasonably certified by the city engineer to be derelict the Company shall pay to the corporation such a reasonable sum as the city engineer shall certify to be the value of—

(a) Any sewer or apparatus so certified to be derelict; and

(b) Any drain sewer or apparatus connected with the said sewer or apparatus and used exclusively for the purpose of serving any premises by means of the sewer or apparatus aforesaid;

and also the cost where incurred by the corporation (as so certified as aforesaid) of the cutting off of every such sewer or apparatus from any other sewer or apparatus and of and incidental to any other works or things rendered necessary in consequence of any sewer or apparatus being rendered derelict by the stopping up of the said portion of Chatham Street or the exercise of the powers of the intended Act or the execution of any works under this agreement.

(2) All and every such sewer or apparatus shall upon payment as aforesaid become the property of the Company but the Company shall not remove or otherwise interfere with any sewer or apparatus without the consent of the corporation before the value and costs (if any) as certified by the city engineer as aforesaid shall have been paid by the Company to the corporation including interest at the rate of five pounds per centum per annum thereon in case the same be not paid within one calendar month after the certificate and demand shall be delivered to the Company.

7. The corporation may if they deem fit employ such number of watchmen and/or inspectors as may be reasonably necessary to watch any works to be executed by the Company whereby any sewer or apparatus of the corporation will or may be interfered with or affected

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A.D. 1916. and the reasonable expense thereof shall be paid by the Company to
--- the corporation on demand.

8. The reasonable expenses of all repairs and renewals of any sewer or apparatus or any works connected therewith as certified by the city engineer which may at any time within twelve calendar months from the completion of the works of the Company under this agreement or the intended Act in on or adjacent to any street be rendered necessary by or in consequence of the acts or defaults of the Company their contractors agents workmen or servants or any person in the employ of them or any of them or rendered necessary by reason of any subsidence resulting from the works of the Company whether during the construction of such works or at any time within twelve calendar months thereafter shall be borne by the Company and paid by them on demand to the corporation.

ARTICLE B.—“THE BRIDGE.”

9. The proposed railway shall be carried over the Ashton New Road by a flat girder bridge having a width not exceeding sixteen feet between the parapets thereof and the abutments thereof so constructed as to conform to the new building lines prescribed by the corporation on the 23rd day of November 1892 and the 7th day of March 1916 respectively Such bridge shall have a clear headway throughout of not less than eighteen feet from the surface of the said road to the underside of the said bridge with closed parapets on both sides of not less than six feet above the level of the rails.

10. In constructing the said bridge abutments and works the Company shall carry the foundations for the abutments of the said bridge to such a depth below the surface of the Ashton New Road as the corporation may reasonably approve.

11. The underside of the said bridge shall be rendered watertight and constructed and maintained absolutely drop dry at all times and properly constructed with efficient gutters and downspouts and connected with the surface-water drains or sewers to the reasonable satisfaction of the city engineer The said gutters and downspouts shall not project in front of the building lines.

12. The corporation shall be at liberty at all times to place and maintain on the said bridge such attachments and appliances as may be necessary for their tramway service in Ashton New Road but so as not to cause any unnecessary damage to the said bridge.

13. Before commencing the construction or material alteration of the said bridge abutments and works the Company shall deliver to the city engineer plans sections elevations and specifications thereof

for the reasonable approval of the corporation and shall not commence such construction or alteration until the plans sections elevations and specifications thereof shall have been reasonably approved by the corporation. Provided always that if the corporation shall fail to disapprove of such plans sections elevations and specifications within twenty-eight days after the same have been delivered to the city engineer then they shall be deemed to have approved the same and the said bridge may be constructed or altered by the Company in accordance with the plans sections elevations and specifications as delivered. A.D. 1916.

14. The Company shall construct and execute the said bridge abutments and works in accordance with the plans sections elevations and specifications approved as aforesaid and at their sole cost and under the reasonable superintendence and to the reasonable satisfaction of the corporation and the Company shall thereafter at the like expense maintain the said bridge abutments and all works connected therewith in perpetuity in good and substantial condition and repair to the reasonable satisfaction of the corporation.

15. The Company shall not in the construction or repair of the said bridge cause any interruption of the passage of the traffic over and along the Ashton New Road further or other than may be from time to time sanctioned by the corporation and shall do as little damage as may be to the Ashton New Road and shall at their own expense in a proper and workmanlike manner and to the reasonable satisfaction of the corporation make good all damage or injury whatsoever which shall happen or arise to the Ashton New Road by reason or in consequence of the construction or repair of the said bridge as aforesaid.

16. If the Company shall neglect or refuse to make good any such damage or injury as aforesaid for the space of twenty-four hours after receiving notice in writing from the corporation requiring them so to do then the corporation may execute and do all works and things necessary for making good the same and the Company shall within fourteen days after demand under the hand of the town clerk pay to the corporation all the reasonable costs charges and expenses incurred by the corporation in executing and doing any such works and things as aforesaid.

17. The Company shall during the execution and until the completion of the said bridge make and carry into effect such arrangements as the corporation may prescribe for lighting and watching any portion of the Ashton New Road interfered with and affected thereby and as may be reasonably necessary to prevent danger or accident to persons and vehicles using the said road.

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18. The Company shall not in making maintaining working or using the said bridge and the works connected therewith in any manner hinder or interfere with the free uninterrupted and safe user of the tramways of the corporation or any traffic on such tramways and if at any time hereafter the free uninterrupted and safe user of the said tramways or any traffic thereon is obstructed hindered or interfered with by reason of the said bridge and works the Company shall pay to the corporation such damages and losses as the corporation sustain by reason thereof but nothing contained in this clause shall prevent the Company from constructing the said bridge and works in accordance with the intended Act and this agreement.

19. The Company shall be responsible for and make good to the corporation all costs losses damages and expenses which may be occasioned to the corporation or to the said tramways by reason of the construction maintenance user or failure of the said bridge and works or of any act or omission of the Company or of any person in their employ or of their contractors and the Company shall effectually indemnify and hold harmless the corporation from all claims and demands upon or against them by reason of such construction maintenance user or failure or of any such act or omission.

20. The Company shall pay to the corporation the reasonable costs incurred by the corporation in superintending the execution of any works in the constructing maintaining and repairing of the said bridge and works and in making such provision as may reasonably be necessary for the continuous working of the Corporation tramways during the execution of any such works.

21. The Company shall repay to the corporation any expense to which they may be put in reinstating any tramway which may be interfered with or injured by the construction of the said bridge and works and the reasonable expense of carrying out such works as may be necessary for the protection of the said tramways and all additional expense to which the corporation as owners of the said tramways may be put to by reason of the construction of the said bridge and works.

22. Where any work in the construction repair or renewal of the said bridge will involve any interference with the said tramways or with the traffic on the highway the Company shall (except in cases of emergency) give to the corporation not less than forty-eight hours' notice in writing before commencing to execute such works and the Company shall in executing such works conform to such reasonable requirements as may be made by the corporation.

23. The Company shall bear and on demand pay to the corporation the expense of the employment by the corporation (during the execution of any works of construction and maintenance) of any inspectors watchmen and/or signallers that may reasonably be appointed

by the corporation for watching signalling and for managing and/or controlling the traffic on the said tramways and the traffic on the highway with reference to and during the execution of the works but such superintendence by the corporation shall not relieve the Company from liability for any accident which may be occasioned by or through the operations of the Company or their contractors agents or workmen. A.D. 1916.

24. The Company shall not affix or exhibit or permit to be affixed or exhibited upon any part of the said bridge or upon any abutment building or hoarding erected in connexion therewith and whether during or after construction of the said bridge any placards or advertisements except such as have been approved in writing by the corporation under the hand of the town clerk and if any such placard or advertisement is affixed or exhibited without such approval the corporation and their authorised officers may remove the same at the cost of the Company.

25. The Company shall make full compensation to the corporation for any damage to or subsidence of the highway or tramway or tramway equipment or any sewers drains water mains pipes or apparatus or gas lamps mains or pipes or electric cables wires pipes or apparatus or other works belonging to or repairable by the corporation which may result from the construction or maintenance of the said bridge or works during the construction or maintenance of such bridge or works or within twelve calendar months after the completion thereof.

ARTICLE C.—“THE JUNCTION.”

26. The junction and junction lines connecting the corporation's branch railway and the proposed railway of the Company together with all appliances necessary and proper for the safe use and working thereof shall be constructed by the corporation at the cost of the Company in accordance with plans sections and specifications to be furnished by the Company to the city engineer and reasonably approved by the corporation and such junction shall be constructed at the point marked C upon signed plan A as the junction between those lines or at such other convenient point adjacent thereto and within the limits of deviation as may hereafter be agreed between the corporation and the Company such cost shall be paid by the Company to the corporation on demand and shall carry interest at five pounds per cent. per annum if not paid within one calendar month after demand.

27. The corporation shall maintain and keep in good condition and repair the said junction and junction lines so far as the same are situate upon the property of the corporation and the Company

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A.D. 1916. — shall pay to the corporation on demand in each year such sum as the city engineer shall certify as the costs reasonably incurred by the corporation in such maintenance and repair in that year.

28. So long as the junction and junction lines shall remain the Company will pay to the corporation on the first day of January in every year the sum of one shilling by way of rent or acknowledgment for the use of so much of their land as shall be occupied by the said junction and junction lines (which land notwithstanding such occupation and however long the same may continue shall always remain the property of the corporation) and the first payment of such rent or acknowledgment shall become due and be made on the 1st day of January 1917.

29. The corporation reserve to themselves the right of using so much of the said junction and junction lines as is upon their property for the purpose of giving access to existing sidings or lines or to any other siding or sidings or line or lines they may in their discretion lay down for the accommodation of themselves or of any other person firm or company but not so as to interfere in any way with the use by the Company of the corporation's branch railway or the Company's proposed line or to put the Company to any unnecessary inconvenience.

30. If the corporation shall at any time during the continuance of this agreement require to construct any additional or other works over or otherwise to use the land belonging to them upon which the said junction and junction lines or any part thereof are constructed and laid down they shall be at liberty to take up and remove the whole or any part of the said junction and junction lines so far as they are situate on the land of the corporation and to relay the same or such parts thereof as may be taken up in an equally convenient position and manner and so as not unreasonably to interfere with or suspend the use of their said line by the Company or put them to any unnecessary inconvenience.

31. The Company will at their own expense if required by the corporation so to do provide and erect and at all times thereafter maintain to the reasonable satisfaction of the city engineer proper gates and fences in such positions as the city engineer shall reasonably approve so as effectually to prevent all trespass upon the corporation's branch railway and property and shall pay and discharge all costs charges and expenses whatsoever which the corporation may be put to by reason of any trespass upon the corporation's branch railway or property occasioned by the insufficiency or defect of and in the said gates and fences and indemnify the corporation against any payment or loss in respect thereof and such gates shall if required by the

corporation be kept closed and locked by the Company at all times when not open for use of the Company's railway And the Company will also undertake all responsibility in respect of any accident that may happen by or through any acts or defaults of themselves or any of their servants contractors or agents. A.D. 1916.

ARTICLE D.—“SIDINGS AND LOOP.”

32. Before exercising any of the powers of running over or using any part of the branch railway junction lines or sidings of the corporation in accordance with the provisions hereinafter contained the Company shall at the cost of the Company construct and complete the additional sidings upon the area coloured blue on the signed plan A (hereinafter referred to as “the blue area”) which are coloured in full red lines upon the plan (hereinafter referred to as “the signed plan B”) signed in duplicate by the town clerk and the secretary of the Company and of which one copy has been deposited with the town clerk and the other copy with the secretary of the Company Such additional sidings shall be constructed in accordance with detailed plans sections and specifications to be submitted to and reasonably approved by the corporation and under the superintendence and to the reasonable satisfaction of the city engineer and when constructed shall be the property of and (subject to the provisions of this agreement) be maintained repaired and from time to time renewed by the corporation.

33. It shall be lawful for the corporation at the cost of the Company to make any reasonable addition to or extension of the existing loop line or passing-place on the portion of the corporation's branch railway between Bank Street and the River Medlock and coloured green on the signed plan A which may be necessary to secure the smooth and efficient working of the Company's and the corporation's traffic over the corporation's branch railway but such extension or addition shall not be made until required by the exigencies of the traffics and until the land necessary therefor is available at the formation level.

ARTICLE E.—“TRAFFIC.”

34. Subject as hereinafter provided and as to the junction lines between the Lancashire and Yorkshire Railway Company's main lines and the sidings of the corporation on the blue area subject to the consent of the Lancashire and Yorkshire Railway Company the Company their servants officers and agents may run over and use with engines waggons trucks and vans the said junction lines between the Lancashire and Yorkshire main lines and the corporation sidings on the blue area and also so much of the corporation's branch railway as extends

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A.D. 1916. — from the terminations of the aforesaid junction lines to the proposed junction between the corporation's branch railway and the Company's proposed railway and may occupy and use for the purpose of receiving despatching standing marshalling and shunting their engines waggons trucks and vans the new sidings to be hereafter constructed on the blue area as hereinbefore provided and so much of the existing sidings and of any additional sidings which may be hereafter constructed on the blue area beyond those hereinbefore provided for as it will be necessary to pass over for the purpose of connecting such new sidings with the main line of the Lancashire and Yorkshire Railway together with such points and signals as may be necessary but subject (so far as may not otherwise be agreed between the corporation and the Company) to the following conditions (viz.):—

- (a) The Company's traffic must consist exclusively of materials minerals goods and things consigned to or despatched from the Company's works in the course of any business from time to time carried on thereon by the Company and not of any other company's or firm's or person's materials minerals goods or things :
- (b) The Company shall supply or procure the supply of all motive power and staff necessary for hauling receiving despatching marshalling shunting or otherwise dealing with their waggons trucks and vans :
- (c) The Company's traffic shall be worked over the corporation's branch railway between the hours of 6 p.m. and 6 a.m. and between such other hours (if any) as the corporation may from time to time in their absolute discretion allow :
- (d) The Company's traffic shall not without the written consent of the corporation given under the hand of the city engineer exceed in amount a maximum of two thousand tons of materials minerals goods or things in any one week (being one thousand tons each way subject to a margin not exceeding twenty per cent. of such one thousand tons) and so far as practicable such traffic shall be worked so as not to congest the lines sidings or junctions of the corporation :
- (e) The Company in the reception despatch shunting and marshalling of their engines waggons trucks and vans upon the corporation sidings shall be subject to such directions as the general manager of the Lancashire and Yorkshire Railway Company shall from time to time lawfully give and subject thereto and in running over the corporation's railways shall conform to such reasonable general directions

as the corporation shall from time to time give under the hand of the city engineer with a view to securing the priority of the corporation's traffic in all respects over the company's traffic and subject to such priority the efficient and smooth working of the corporation's traffic and the Company's traffic over the corporation's branch railway sidings and junctions and in the case of the Company's traffic to secure that the working thereof shall not unreasonably interfere with the traffic of any other company firm or person running over or using the corporation's branch railway sidings and junctions or any of them or any part thereof by agreement with the corporation The corporation may temporarily suspend the traffic of the Company if in any case it is necessary so to do to ensure the priority of the corporation's traffic :

A.D. 1916.

- (f) The Company their servants officers and agents will and shall in using the corporation's sidings upon the blue area observe and perform and be bound by the byelaws and regulations of the Lancashire and Yorkshire Railway Company which are now or shall be for the time being in force for the government and use of the Lancashire and Yorkshire Railway Company :
- (g) The officers servants and agents of the Company shall at all times when upon the corporation's land branch railway or premises subject and without prejudice to such directions as may be given by the general manager of the Lancashire and Yorkshire Railway Company with respect to the reception despatch shunting and marshalling of their engines waggons trucks and vans upon the corporation sidings and subject to the due performance by the Company of the byelaws and regulations of the Lancashire and Yorkshire Railway Company be under the control of the corporation's officer for the time being in charge of the corporation's branch railway and shall comply (subject as aforesaid and so far as the matter is not within the general regulations under the hand of the city engineer) with the regulations orders and directions of the corporation officer aforesaid and in the event of any of the Company's said officers servants and agents not complying therewith or otherwise misconducting themselves such officers servants and agents shall upon request of the corporation under the hand of the city engineer be prohibited by the Company from coming upon the corporation's premises whilst they are being employed by the Company :

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- (h) The Company shall keep the corporation indemnified against all damage and injury of every description whether to the property of the corporation or to their officers or servants or to other persons using the premises of the corporation which may occur in working the Company's engines waggons trucks and vans over the corporation's branch railway and sidings unless such damage or injury be caused by the neglect or misconduct of the servants of the corporation:
- (i) The Company shall pay to the corporation for the maintenance and renewal and use of the railways junctions and sidings of the corporation a rate (hereinafter referred to as "the tonnage rate") for every ton or part of a ton of goods materials minerals and things passed by them or at their request over the corporation's branch railway junctions and sidings or any of them or any part of them. The amount of the tonnage rate shall be ascertained for each year ending the 31st March by dividing the total costs charges expenses and outgoings of every description (other than for engines engine staff fuel water grease &c. for locomotive power) borne incurred or expended in that year by the corporation in and incidental to the provision of the sites of and the ownership construction maintenance repair renewal supervision and working of the said corporation's branch railway sidings and junctions (including the additions herein provided for or referred to) by the total number of tons of goods materials minerals or things passed over the said corporation's branch railway sidings and junctions or any of them or any part of them in that year. Any payments for tonnage rates due and payable by the Company to the corporation under this Article E. before the tonnage rate for the year in which the payment is made has been ascertained shall be calculated and made at the tonnage rate ascertained for the year next before that in which the payment is made and where no such rate has been ascertained at the rate of sixpence per ton but any payments so calculated and made shall be deemed to be payments on account and shall if less than or in excess of the amount which would be payable had the same been calculated and made at the tonnage rate for the year as subsequently ascertained be adjusted by such further payment by the Company or allowance by the corporation as may be necessary as soon as the tonnage rate for the year in which the payments have been calculated and made has been ascertained. Certificates by the city engineer of the amount of tonnage rates payable by the Company shall be

forwarded to the Company quarterly in each year and shall be paid by the Company within one calendar month of the receipt thereof and if not so paid shall carry interest at the rate of five pounds per cent. per annum until payment: A.D. 1916.
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- (j) In case of the nonpayment of any amount due under this article for a space of one calendar month after the same has become due the corporation may by notice in writing under the hand of the city engineer suspend the Company's engines waggons trucks and vans and their officers servants and agents from the use of the corporation's branch railway sidings and junctions until such amount has been paid:
- (k) The corporation reserve to themselves the right of admitting the traffic of any other company firm or person to the use of the corporation's branch railway sidings and junctions provided that such use does not prevent or unreasonably interfere with the use by the Company of the corporation's branch railway sidings and junctions under the terms of this agreement.

ARTICLE F.—“GENERAL.”

35. The provisions contained in this agreement shall unless otherwise agreed between the parties extend and apply to the respective successors in title of the parties hereto to the respective estates and properties to which the aforesaid provisions extend and apply and shall pass to such respective successors upon any sale or transference of such estate or property.

36. Notwithstanding anything contained in this agreement or shown upon the plans and sections deposited in connexion with the Bill the Company shall not stop up or (except so far as may be authorised by the corporation) interfere with any highway other than so much of Chatham Street as is coloured yellow upon the signed plan A.

37. Nothing in this agreement contained shall be deemed to supersede or relieve the Company from the obligation to observe and conform to the Acts of Parliament byelaws and regulations for the time being in force in the city of Manchester so far as they relate to the subject matters herein provided for and are not inconsistent with the provisions hereof.

38. If in the opinion of the corporation it shall at any time or from time to time be necessary as the consequence of or in connexion with the construction or maintenance by the Company of any work hereby or by the intended Act authorised to reconstruct or divert any existing sewers apparatus or work of the corporation or to construct any new works for the protection of the sewers apparatus or works of

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A.D. 1916. the corporation the corporation may cause the same to be executed and done and the reasonable cost thereof as certified by the city engineer shall and will be paid by the Company to the corporation on demand together with interest at five pounds per cent. per annum if not paid within one calendar month after demand Provided that if the Company shall consider that any requirements of the corporation under this clause are unreasonable the question shall be referred to arbitration.

39. Any works to be executed by the Company under the intended Act or this agreement whereby any sewer or apparatus of the corporation will or may be interfered with or affected shall be executed under the superintendence (if after reasonable notice from the Company such superintendence shall be given) and to the reasonable satisfaction of the corporation.

40. Before commencing to exercise any of the powers or rights conferred upon the Company by the intended Act or this agreement the Company shall pay to the corporation the sum of £3,500.

41. In this agreement the expression "the city engineer" means—

- (a) As respects matters affecting the electricity undertaking of the corporation the chief electrical engineer for the time being of the corporation ;
- (b) As respects matters affecting the gas undertaking of the corporation the engineer for the time being of that undertaking ;
- (c) As respects matters affecting the waterworks undertaking of the corporation the engineer for the time being of that undertaking ;
- (d) As respects matters affecting the tramways undertaking of the corporation the general manager for the time being of that undertaking ; and
- (e) As respects all other matters the engineer or surveyor for the time being of the corporation performing the duties of city engineer or city surveyor as the case requires.

42. The costs of this agreement and the reasonable costs and expenses of the corporation in and incidental to any parliamentary proceedings for the confirmation of this agreement or otherwise giving effect to the Company's proposals shall be borne by the Company.

43. If any difference shall arise between the corporation and the Company under the provisions of this agreement the matter in difference shall be referred to and settled by an arbitrator to be

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agreed upon or failing such agreement to be appointed on the application of either party by the President for the time being of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such settlement by arbitration. A.D. 1916.

44. This agreement (except clause 42) is conditional on the Bill being passed authorising the construction of the intended railway and the stopping up of the said portion of Chatham Street and also on its being confirmed by Parliament and it is subject to such alteration as Parliament may think fit to make therein but if the Committee on the Bill make any material alteration in such agreement it shall be competent to either party to withdraw the same (except clause 42 which shall remain in force) Provided that the Company shall not withdraw this agreement without at the same time withdrawing the Bill.

In witness whereof the corporation and the Company have hereunto affixed their respective common seals the day and year first before written.

The common seal of the corporation of the city of Manchester was hereunto affixed in pursuance of an order of the council of the said city in the presence of—



11566

THOS. SMETHURST Lord Mayor.
THOMAS HUDSON Town Clerk.

The common seal of the Clayton Aniline Company Limited was hereunto affixed in the presence of—



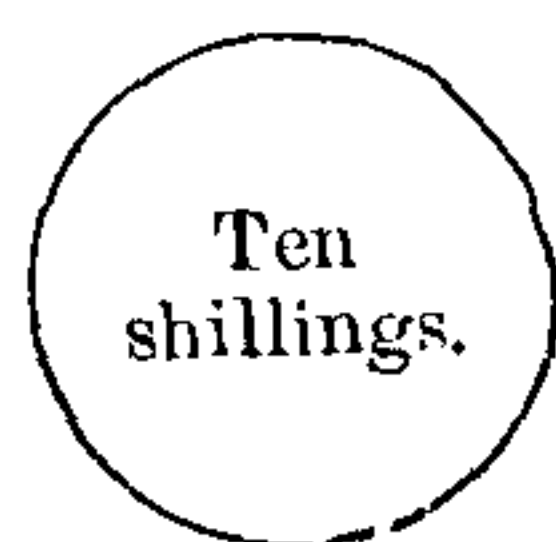
M. BAERLEIN }
W. WELSH } Two Directors.
GEO. BIGGS Secretary.

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THIRD SCHEDULE.

Stamp.



ARTICLES OF AGREEMENT made the first day of August one thousand nine hundred and sixteen between the LANCASHIRE AND YORKSHIRE RAILWAY COMPANY (hereinafter referred to as "the railway company") of the first part the LORD MAYOR ALDERMEN AND CITIZENS OF THE CITY OF MANCHESTER (hereinafter called "the corporation") of the second part and the CLAYTON ANILINE COMPANY LIMITED whose registered office is situate at Chatham Street Clayton Manchester aforesaid (hereinafter called "the Limited Company") of the third part.

WHEREAS under an agreement dated the ninth day of May one thousand nine hundred and two made between the corporation and the railway company certain junctions with the railway company's Ashton Branch Railway near Park Station in connexion with a branch railway constructed by the corporation from such railway to their Stuart Street electricity works were laid down together with certain sidings such junctions and sidings being delineated upon the plan annexed to the agreement now in recital and thereon coloured purple And by the said agreement it was (amongst other things) provided that in consideration of the corporation paying to the railway company during the continuance of the agreement by half-yearly payments the yearly sum of £32 the railway company would maintain and keep in good condition the junctions and sidings coloured purple as aforesaid and all the signalling and other appliances necessary for the working of the said junctions and sidings And further that the said junctions and sidings should be used by the corporation for the purposes and accommodation of the traffic of the corporation exclusively unless with the consent of the railway company and then only upon such terms and conditions as should be agreed upon between the parties thereto and that the corporation would not permit any other person or persons to use the said junctions and sidings or any part thereof without the consent in writing of the railway company :

And whereas the Limited Company are promoting a Bill in the present session of Parliament intituled "Clayton Aniline Company Limited (Railways)" (hereinafter referred to as "the Bill") for an Act to authorise them to construct a line of railway giving access to their works from the Ashton Branch of the railway company by means of the corporation branch railway And by the said Bill it is proposed to confirm and make binding upon the parties thereto an agree-

(scheduled to the Bill) dated the thirty-first May one thousand nine hundred and sixteen made between the corporation of the one part and the Limited Company of the other part (hereinafter referred to as "the scheduled agreement") : A.D. 1916.

And whereas the corporation have made application to the railway company in terms of clause 5 of the before-recited agreement of ninth May one thousand nine hundred and two for the railway company's consent to the Limited Company having the use of the junctions and sidings the subject matter of the said agreement :

And whereas the railway company have agreed to give such consent on the terms and conditions hereinafter set forth :

Now it is hereby covenanted declared and agreed between and by the parties hereto in manner following (that is to say) :—

1. Before exercising any of the powers of running over or using any part of the branch railway junction lines or sidings of the corporation in accordance with the provisions of the scheduled agreement the Limited Company shall at their own cost—

- (a) Construct and complete the additional sidings upon the area coloured blue on the signed plan "A" (in the scheduled agreement and hereinafter referred to as "the blue area") which are coloured in full red lines upon the plan (in the scheduled agreement and hereinafter referred to as "the signed plan B") signed in duplicate by the town clerk and the secretary of the Limited Company and copies of which plans are hereunto annexed Such additional sidings shall be constructed in accordance with detailed plans sections and specifications to be submitted to and reasonably approved by the railway company and under the superintendence and to the reasonable satisfaction of their engineer and when constructed shall be the property of and (subject to the provisions of the scheduled agreement) be maintained repaired and from time to time renewed by the corporation to the reasonable satisfaction of the said engineer ; and
- (b) Construct and complete on their own property adequate siding accommodation for their traffic so as to prevent the sidings to be constructed under sub-clause (a) of this clause from becoming congested and causing the traffic of the Limited Company to be held back at other points on the railway of the railway company :
- (c) If any question or difference whatsoever shall hereinafter arise between the railway company and the Limited Company with respect to any of the provisions of this clause or

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anything to be done thereunder such question or difference shall be referred to a single arbitrator in case the said parties can agree upon one otherwise to two arbitrators one to be appointed by the railway company and one to be appointed by the Limited Company in accordance with and subject to the provisions of the Arbitration Act 1889.

2. Subject as hereinafter provided the railway company hereby consent and agree that the Limited Company their servants officers and agents may run over and use with engines waggons trucks and vans the junction lines between the railway company's main lines and the corporation sidings on the blue area together with such points and signals as may be necessary but subject (so far as may not otherwise be agreed between the parties hereto) to the following condition (namely):—

The Limited Company's traffic must consist exclusively of materials minerals goods and things consigned to or despatched from the Limited Company's works in the course of any business from time to time carried on thereon by the Limited Company and not of any other company's or firm's or person's materials minerals goods or things.

3. In exercising the rights conferred upon the Limited Company over the junctions and sidings referred to in the before-recited agreement of ninth May one thousand nine hundred and two the Limited Company shall mutatis mutandis and notwithstanding anything contained in the scheduled agreement or in the said intended Act of Parliament be subject to the provisions of the said recited agreement of ninth May one thousand nine hundred and two so far as the same may be applicable.

4. The railway company shall afford reasonable facilities for receiving forwarding and delivering upon and from the sidings of the corporation on the blue area the Limited Company's traffic as defined in clause 2 of this agreement as if the junctions between the said sidings and the railway of the railway company had been constructed under the provisions of the Railways (Private Sidings) Act 1904.

5. The consent of the railway company hereby given to the use by the Limited Company of the junctions and sidings referred to in the said agreement of ninth May one thousand nine hundred and two is restricted to the particular consent herein given.

6.—(a) The corporation shall proceed forthwith to construct and complete the additional sidings upon the blue area which are indicated by barred red lines upon the signed plan "B" Such additional sidings shall be constructed in accordance with detailed plans sections

and specifications to be submitted to and reasonably approved by the railway company and under the superintendence and to the reasonable satisfaction of their engineer and the corporation shall thereafter maintain the same to the reasonable satisfaction of the said engineer. Provided that as regards so much of the additional sidings as will be on land not now vested in the corporation or not now at formation level the corporation shall (subject to the next succeeding proviso) only be liable to construct and complete the same as and when the land is available for the purpose and shall by the regular process of tipping ashes or other material from the corporation's electricity works in Stuart Street have been brought up to the requisite level. Provided further that notwithstanding the last preceding proviso if the general manager of the railway company shall at any time request the corporation to provide further siding accommodation for full or empty waggons or for the efficient and economical working of the traffic to and from the said branch railway nothing in this clause contained shall be deemed to relieve the corporation from the obligation contained in clause 11 of the said agreement of ninth May one thousand nine hundred and two. A.D. 1916.

(b) Before the corporation commence to tip or prepare the site for the said sidings indicated by barred red lines on the said plan B they shall if required by the railway company's engineer remove and reinstate where necessary the railway company's existing boundary fence east of the existing sidings coloured brown on the said plan B and any fencing removed and not so reinstated shall remain the property of the railway company.

(c) The payment by the corporation to the railway company under clause 4 of the said agreement of ninth May one thousand nine hundred and two of the sum of one guinea per annum by way of rent or acknowledgment for the use of so much of the railway company's land as shall be occupied by the junctions and sidings therein referred to shall be deemed to include the use of the railway company's land by the additional sidings provided for in this clause which land notwithstanding such occupation and however long the same may continue shall always remain the property of the railway company.

7. The corporation will if required by the railway company at their own expense provide and erect and at all times thereafter maintain to the satisfaction of the railway company's engineer proper fences adjoining the sidings to be constructed by the Limited Company and by the corporation under the provisions of this agreement so as effectually to prevent all trespass upon the railway company's railway and property and shall pay and discharge all costs charges and expenses whatsoever which the railway company may be put to by

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(*Railways*) Act, 1916.

A.D. 1916. — reason of any trespass upon the said railway or property occasioned by the insufficiency or defect of and in the said fences and indemnify the railway company against any payment or loss in respect thereof.

8. As from the date when the Limited Company begin to run over and use the said junction lines and sidings the sum of £42 per annum shall be substituted for the sum of £32 per annum in clause 1 of the said agreement of ninth May one thousand nine hundred and two as the payment to be made by the corporation in respect of maintenance of the said junctions and sidings coloured purple on the plan annexed to the said agreement and all the signalling and other appliances necessary for the working of the said junctions and sidings.

9. The rates to be paid by the Limited Company to the railway company under the railway company's powers in respect of traffic to and from the railways of the Limited Company shall from time to time be agreed between the railway company and the Limited Company or failing agreement shall be determined by the Railway and Canal Commissioners.

10. The Limited Company will pay the railway company's charge in accordance with their scale for the time being for railway company's trucks sacks and sheets detained before or after transit beyond the period allowed by the railway company's regulations.

11. Provided that the charges of the railway company shall not exceed those of any other railway company or companies in respect of similar traffic conveyed between the same points the Limited Company shall consign and cause to be consigned by the line of the railway company all traffic conveyed by railway to or from the Clayton Works of the Limited Company the routing of which they are in a position to control.

12. The Limited Company shall keep the railway company indemnified against all costs claims and demands in respect of any damage or injury caused by fire or otherwise to the trucks sacks and sheets of the railway company or of any other company person or firm while such trucks sacks or sheets are upon the railways or sidings of the corporation or the Limited Company unless such damage or injury be caused by the neglect or default or misconduct of the railway company or the corporation or their respective servants.

13. This agreement is conditional on the Bill being passed and this agreement being confirmed by Parliament and is subject to such alterations as Parliament may think fit to make therein but if any material alteration in such agreement is made it shall be competent to any party to this agreement to withdraw the same Provided that the Limited Company shall not withdraw this agreement without at the same time withdrawing the Bill.

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(*Railways*) Act, 1916.

In witness whereof the parties hereto have hereunto affixed their A.D. 1916.
respective common seals the day and year aforesaid.

The common seal of the Lancashire and
Yorkshire Railway Company was hereunto
affixed in the presence of—
R. C. IRWIN Secretary.

102,032



JOHN PLATT.

The common seal of the corporation of the city
of Manchester was hereunto affixed in
pursuance of an order of the council of the
said city in the presence of—

THOS. SMETHURST Lord Mayor.
THOMAS HUDSON Town Clerk.



13309

The common seal of the Clayton Aniline
Company Limited was hereunto affixed in
the presence of—

M. BAERLEIN }
W. WELSH } Two Directors.
GEO. BIGGS Secretary.



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